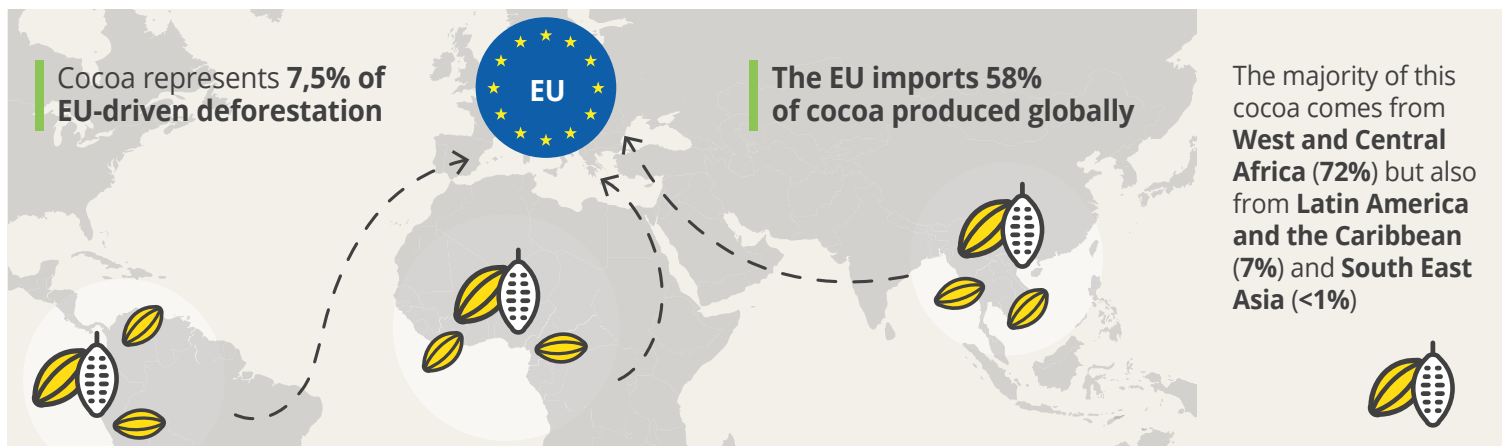




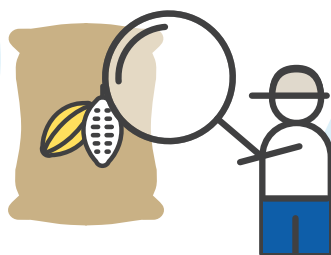
THE EU SUSTAINABLE COCOA PROGRAMME

Unpacking the EU Deforestation Regulation for the cocoa sector

90% of deforestation is driven by the expansion of agricultural land, contributing to climate change, biodiversity loss, soil erosion and desertification, and hindering sustainable development



The EU is taking action to **minimise the risk that products associated with deforestation enter the EU market** and to increase the demand for deforestation-free products



The **EU Deforestation Regulation (EUDR)** requires companies to ensure that the products they place on the EU market or export from it are **legal and not associated with deforestation**



Chocolate
Paste
Beans

Powder
Butter, fat, oil
Shells

CATTLE

COCOA

COFFEE

PALM OIL

RUBBER

SOYA

WOOD

Derived products

The EUDR does not create a country or product ban

It is non-discriminatory and will apply to selected products, either those produced in, imported into or exported from the EU

Operators will have to **comply** with the **EUDR** from **30 December 2024** (mid-2025 for micro and small enterprises)



The EUDR can accelerate progress towards **cocoa traceability and sustainability**

To enter the EU, cocoa must be:

 TRACEABLE	The cocoa's origin (GPS information on plot*), suppliers and buyers <i>*GPS polygons for plots > 4 ha</i>	To be submitted in a due diligence statement
 DEFORESTATION-FREE	That cocoa does not come from land deforested after 31 December 2020 <i>Deforestation = conversion of forests into agricultural land, including cocoa-agroforestry systems</i>	What's a forest? The regulation uses an internationally-agreed definition from the FAO 
 LEGAL	Compliance with the relevant legislation of the country of production, including on land, environment, human rights, third parties' rights, the principle of free, prior and informed consent, labour, trade and customs	

Due diligence for companies consists of 3 steps :

1	Collect evidence that the product is traceable, deforestation-free and legal	
2	Assess risks of non-compliance	
3	If risks have been identified, take action to mitigate them	

A **benchmarking system** will categorise countries or regions according to **deforestation risk**. The frequency of EU Member States' **checks will vary consequently**:

Products from:	Obligations:	Frequency of checks:
LOW risk areas	simplified due diligence*	 1%
STANDARD risk areas	full 3-step due diligence process	 3%
HIGH risk areas	full 3-step due diligence process	 9%



* If companies buy cocoa from a **low-risk area**, they only need to carry out the **first step** (except if there are any doubts – then all 3 steps need to be undertaken)

1. Map GPS locations of deforestation-free cocoa plots



2. Deforestation-free cocoa delivered to first buyers, where it is kept segregated



3. Possible processing of deforestation-free cocoa into derived products



4. Deforestation-free cocoa or derived products segregated during export



EU

5. Importer or manufacturer in the EU processes or packages deforestation-free cocoa or cocoa products



6. EU retailer sells deforestation-free chocolate to consumers



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See **references**.

In support of the EU Sustainable Cocoa Initiative



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